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- this constitute a socially salient group, virtue is inconsistent with the complete absence of discrimination. So, for instance, if a virtuous person is a patriot and being so requires partiality towards members of one's own nation, then virtue and non-discrimination are inconsistent. See Alasdair MacIntyre, 'Is Patriotism a Virtue?', *Lindley Lecture* (Lawrence, KS, 1984).
- 24 In saying this I do not intend to suggest that one cannot discriminate against members of the socially salient groups to which one belongs oneself.
- 25 In principle virtue ethics could include an account of virtues of groups of people – 'communal virtues'. If it did, it might be less tolerant of discrimination. However, theorists of virtue ethics normally focus on the virtues of individual persons.
- 26 Immanuel Kant, *Groundwork for the Metaphysics of Morals* (New Haven: Yale University Press, 2002), 40.
- 27 I discuss elsewhere whether the wrongness of discrimination is best explained in terms of disrespect, see Kasper Lippert-Rasmussen, 'Private Discrimination: A Prioritarian, Desert-Accommodating Account', *San Diego Law Review*, 43 (2006), 981–994.
- 28 Larry Alexander, 'What Makes Wrongful Discrimination Wrong?', *University of Pennsylvania Law Review* 149 (1992), 149–219.
- 29 Affirmative action tends to favour people who are worse off. Accordingly, given decreasing marginal benefits from additional resources or given that our favoured consequentialist theory is of the prioritarian type, consequentialism can explain why it is morally different from the kinds of 'non-reverse discrimination' which we know of and which, almost without exceptions, tend to harm those who are worse off.
- 30 Matt Cavanagh presses an objection like this in Cavanagh, *Against Equality of Opportunity*, p. 155. However, it is significant that his own account of why discrimination is morally wrong when it is – an account involving the idea that it then expresses unwarranted contempt – is vulnerable to the very same objection. It is possible to express unwarranted contempt without discriminating against anyone.
- 31 Erving Goffman, *Stigma: Notes on the Management of Spoiled Identity* (London: Penguin Books, 1963), 12.
- 32 Paul Brest, 'In Defense of the Antidiscrimination Principle', *Harvard Law Review*, 90/1 (1976), 10.
- 33 Derek Parfit, 'Equality and Priority', in Andrew Mason (ed.), *Ideals of Equality* (Oxford: Basil Blackwell, 1998), 1–20.
- 34 Larry Temkin, *Inequality* (Oxford: Oxford University Press, 1993), 248.
- 35 See Larry Temkin, *Inequality*, pp. 249–55 and Kasper Lippert-Rasmussen, 'The Insignificance of the Distinction Between Telic and Deontic Egalitarianism', in Nils Holtug and Kasper Lippert-Rasmussen (eds), *Egalitarianism: New Essays on the Nature and Value of Equality* (Oxford: Oxford University Press, 2007), 101–124.

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Freedom of Speech

Why Freedom of Speech Includes Hate Speech

Daniel Jacobson

John Stuart Mill defended the 'absolute and unqualified' freedom of expression of opinion on all subjects, as 'a matter of ethical discussion', regardless of the opinion's falsity or immorality, or even the 'pernicious consequences' of its expression.¹ Mill includes the liberty to express one's opinions publicly as part of the doctrine he terms the 'Liberty of Thought', construed in the 'most comprehensive sense' (I, 12). Establishing the 'freedom of enunciating all possible opinions' (II, 39), Liberty of Thought constitutes the first of three branches of the sphere of liberty characteristic of what he termed the 'free society', within which individuals are at liberty to pursue their own good in their own way, protected from interference by other persons or the state (I, 16).²

While bad opinions should be forcefully criticized, according to Mill, they should never be silenced by threat of punishment. He thus rules out *coercion* in the realm of thought and discussion absolutely, while promoting *persuasion* however critical.³ Mill also draws a crucial distinction between thought and action. Despite favouring individuality and diversity among permissible modes of life, he notes: 'No one pretends that actions should be as free as opinions' (III, 1). Moreover, Mill recognizes that certain speech acts are more performative than others: we do things with words besides forming and expressing our opinions. It is crucial to recognize that Mill counts acts of expressing one's thoughts with *opinion* as opposed to *action*, however, thereby, giving them the same fundamental protection granted to thought.⁴ Yet Mill did not defend the liberties of conscience by positing any 'abstract right', as a thing independent of utility' (I, 11); rather, he makes an indirect utilitarian argument, which aims to bar from deliberation the censorship of any opinion whatsoever. In this paper, I will argue that only such a principled defence, which protects opinions from being trumped by other

rights or social goods, can provide the robust protection of thought and feeling that Mill claimed to be an essential element of a free society, 'whatever be its form of government' (I, 13).

Such an uncompromising defence of free speech has not been generally accepted outside of the United States – or rather its courts and, to a lesser but still considerable extent, popular opinion – where Liberty of Thought is enshrined in the First Amendment to the Constitution.⁵ Even within the US academy, both in law schools and philosophy departments, the American way with freedom of expression has been recently attacked and increasingly forsaken. As evidence, consider the views of leading First Amendment scholars from Harvard and Yale, Frederick Schauer and Owen Fiss, neither of whom approaches the most hostile academic antagonists of free speech.⁶ Schauer claims censorship to be 'inevitable, necessary, and desirable' – a conclusion he reaches by adopting a conception of censorship so broad as to undermine Mill's fundamental moral distinction between persuasion and coercion.⁷

Indeed, Schauer embraces this assimilation explicitly. '[W]hen the actions of others create structures and institutions that stifle our expressive capacities', he writes, 'it is important to see such activities as censorious in much the same way as we see the more overt restrictive actions of the state as censorship'.⁸ Yet since some form of external influence – however tenuous or innocuous – is unavoidable, the assimilation Schauer endorses of all such 'exogenous' influences makes it seem capricious to condemn some but not other acts of this kind.⁹ He thus complains:

All too often, what is at times characterized as censorship seems to be quite similar to what at other times is characterized as editing, or choice. At times it is 'simply' speech, as when pundits blithely characterize the words of Salman Rushdie as the target of censorship and the words of the Ayatollah Khomeini in calling for a *fatwa* against Rushdie as censorship, even though, like Rushdie, words were the only things that the Ayatollah employed.¹⁰

By rejecting both the distinction between coercion (a death sentence) and criticism (condemnation of that threat), and the equally fundamental distinction between opinion and action – writing a novel and issuing a *fatwa* – Schauer embraces conclusions that are as illiberal as his comparison between Khomeini and Rushdie is absurd.¹¹ Indeed, Schauer's flippancy towards deadly serious threats directed at liberal artists, thinkers and intellectuals accused of blasphemy should be

seen as dangerously blithe itself, in light of recent political developments. Or so I will argue.

While Fiss neither disputes the coherence of the doctrine of freedom of speech nor celebrates censorship as desirable, he does argue that in order to ensure diversity of opinion the state 'may even have to silence the voices of some in order to hear the voices of others'.¹² The fundamental irony of free speech, according to Fiss, consists in the fact that while its aim is to promote 'full and open debate on issues of political importance', social reality requires the state to suppress certain opinions on behalf of that aim.¹³ Free speech thus dictates censorship of those opinions that have a 'silencing dynamic' – which he identifies as the views of 'racists, pornographers, and the rich'.¹⁴ Fiss grants that the expression of racist opinion does not literally prevent anyone from speaking in opposition. Nevertheless,

It is asserted that hate speech tends to diminish the victims' sense of worth, thus impeding their full participation in many of the activities of civil society, including public debate. Even when these victims speak, their words lack authority; it is as though they said nothing.¹⁵

That free-speech sceptics often assert this claim cannot be doubted; but its truth is more questionable, and Fiss offers no evidence that hate speech does not merely offend or even harm, but *silences* its victims. Nor is countermanning evidence considered, such as the flourishing of multiculturalism, with its celebration of previously marginalized voices, in the academy and among the intelligentsia. Yet no worries about evidence keep Fiss from proposing, on these grounds, to drastically revise speech rights by abrogating the principle of viewpoint neutrality explicitly embraced by Mill (as well as the US courts).

Even so, Fiss's rationale for censorship captures something congenial to Mill. They both value diversity of opinion and robust ethical discussion as prerequisites for human flourishing and the political system most conducive to it, representative government. As Fiss puts the point, the state is 'trying to establish essential preconditions for collective self-governance by making certain that all sides are presented to the public' on issues of ethical importance.¹⁶ However, Fiss develops this thought in a much less compelling manner than does Mill, proposing that the judiciary 'enhance the quality of debate' by acting as a fair parliamentarian attempting 'to ensure the robustness of public debate'.¹⁷ There are two great problems with this suggestion. First, it is impossible to present *all* sides of an issue; the goal of amplifying the least popular opinions, were

it really taken seriously, seems neither possible nor desirable. Second, when the government attempts actively to enhance the quality of a debate, it will predictably succumb to the temptation to silence putatively low-quality (as opposed to high-volume) opinions. Such substantive judgments of quality take the first step toward establishing an official state history, ideology or even science.¹⁸ While this worry may seem exaggerated, it should be considered in light of the fact that critics of free speech often admit, when speaking *entre nous*, to be advancing a specifically leftist ideology. Thus, as Robert Post – Fiss's Yale Law School colleague and fellow First Amendment scholar – notes, approvingly: 'Liberated from traditional inhibitions against official suppression of speech, the left has mobilized to pursue a rich variety of political agendas.'¹⁹

Indeed, the principle of promoting unpopular views *per se*, applied consistently, would favour not the fashionably multicultural voices Fiss identifies so much as those truly *outré* opinions routinely silenced by the demonization of their advocates, such as defences of patriarchal polygamy and gender or racial superiority. Moreover, the fact that Fiss combines lack of evidence for the silencing claim with a politicized conception of diversity, rather than true diversity of opinion, suggests special pleading on behalf of those opinions and groups he (and his audience) find most sympathetic. Although he claims to want to amplify the voices of disadvantaged groups – in particular, women, minorities and the poor – there are reasons to doubt whether members of those groups are heard, or rather silenced, by their progressive champions when their opinions deviate from Post's 'rich variety' of political agendas – all of which are leftist.²⁰ Yet even racism, sexism and polygamy get excused when championed by those canny enough to frame their position in a politically fashionable way, as post-colonialist or simply anti-Western.

Whereas Schauer and Fiss both reject freedom of speech, they do so in different ways and to different degrees. We might call those critics who see themselves as following Mill's liberal principles to conclusions that compromise his defence of freedom of speech *revisionists*, in contrast to the free speech *scpticism* of Schauer, Post and Lawrence (among others). I want to focus here on the liberal revisionists rather than those sceptics who view the liberal ideal of freedom of expression as misguided or worse, and liberals themselves as 'unconscious racists'. Consider first an argument by Brink concerning what he calls hate speech, but defines so narrowly as to include only a small fraction of the speech targeted as such.²¹ As Brink uses the phrase, 'hate speech' includes only a subclass of what American courts have termed *fighting words* – epithets delivered

face-to-face – for which they have crafted a narrow, viewpoint-neutral exception based on the minimal content and provocative context of their expression. The interest of the class of speech Brink targets is primarily academic, in several respects. Such speech is already excluded from protection even in the US, as a matter of First Amendment jurisprudence. Considered theoretically, the prohibition of certain words in public contexts need not conflict with Mill's absolute protection of the expression of opinion and sentiment, insofar as these ideas and feelings can be expressed in other language.²² And the main concern of Brink's article is to defend certain campus speech codes (such as the Stanford code he considers in detail), so his practical focus is largely on the academy.

Finally, Brink's discussion can be considered academic in another, pejorative sense: it is so narrowly focused as to miss the big picture. Brink argues for suppressing racial slurs (against minority groups), and then briefly suggests the possibility of much broader suppression of 'discriminatory' opinions. I contend that it is more illuminating to look in the other direction. By examining the real-world consequences of the suppression of opinions deemed hateful or discriminatory, we can appreciate the wisdom of Mill's doctrine of Liberty of Thought which tolerates all opinions, as the subject of ethical discussion, regardless of their truth or morality. Whatever the merits and dangers of campus speech codes barring certain face-to-face racial *epithets*, their importance pales in comparison to the burgeoning legislation intended to suppress the expression of racist *opinions*. Hence, although I will later consider one aspect of Brink's argument in more detail, my focus will be elsewhere; and by 'hate speech' I will mean the much broader and more important class of opinions currently targeted as such by Canada, the European Union and the United Nations.

My primary foil in this paper will be L. W. Sumner, who attempts to argue from Millian premises to the conclusion that certain opinions – which he terms 'hate propaganda', 'hate literature' or simply 'hate speech' – can, at least in principle, be legitimately suppressed. Even Sumner's discussion focuses too narrowly to deal adequately with the current practical debate, since legislation in Western democracies prohibits expression not only of opinions deemed to 'incite hatred' of protected groups; but also genocide denial or minimization as such; and even – most broadly and dangerously – opinions offensive to religious or political beliefs. All these charges are vague, and therefore chill far more speech than is actually prosecuted. Moreover, they are applied inconsistently, either capriciously or in service of the sort of intellectual orthodoxy

Mill decried. And their effect has been to undermine legitimate moral and political debate. This is not a slippery-slope argument, as I will be focusing on *what has already happened*, not on the further depths to which these tendencies may yet descend.

In this chapter, I will argue that the uncompromising defence of free expression exemplified by Mill fares much better than the revisionist version, offered by Sumner and Brink (among others), at combating the practical crisis of political speech already extant, especially in Europe. I will not be arguing for freedom of speech against its most sceptical antagonists. Rather, I aim to show that the revisionist view fails to promote the speech most important to ethical and political discussion, in theory; and that in practice it has become increasingly clear that this approach fails to deliver its purported benefit of improving the quality of ethical discussion. A clear view of current political reality illustrates that – for just the reasons Mill anticipated – only his classically liberal and unfashionably absolutist defence proves capable of protecting the Liberty of Thought. Though the revisionists suggest that their approach merely sacrifices low-quality speech, they are mistaken both in theory and practice. Revisionism jeopardizes just the sort of speech Mill was most concerned to defend; moreover, it does so for reasons that issue from its faulty interpretation of Mill's argument in *On Liberty*. The problem that links the misreading of Mill with the inadequate protection of speech, in short, is that both make the freedoms of conscience subject to the vagaries of political forces, and hostage to tendentious claims supported less by empirical evidence than by ideology.

4.1 Classical liberalism and the contemporary left

Mill's classical liberalism focuses around his defence of a sphere of basic liberties that form the cornerstone of a free society. In particular, the free society ensures those liberties requisite for human flourishing, which Mill takes to include moral and intellectual development as well as more mundane rights to security of life and property.²³ Even philosophers generally congenial to liberalism now commonly display ambivalence over the centrepiece of Mill's sphere of liberty: the freedoms of conscience. Mill dedicates the second chapter of *On Liberty* to illustrating his arguments for the whole sphere of liberty by giving reasons specific to its first branch, the Liberty of Thought. 'If the arguments of the present chapter are of any validity', he announces at its outset, then 'there ought to exist the fullest liberty of professing and discussing, as a matter

of ethical conviction, any doctrine, however immoral it may be considered' (II, 1 fn. 1). Note two points about this dictum. First, it embraces the principle of viewpoint neutrality, in that the substantive merits of an opinion do not count as reasons for its toleration or suppression. Second, by specifying the context of ethical discussion, Mill distinguishes thought (including public debate) from the more performative things we do with words: provide means for action, plan or conspire to act, make promises, issue orders, and the like.²⁴

However, Sumner claims there to be an intractable conflict between liberty and equality – more specifically, between speech rights and equal protection under the law – which creates a deep tension for liberals. His recent book, *The Hateful and the Obscene: Studies in the Limits of Free Expression*, focuses on hate speech construed broadly as 'derogatory opinion about or attitude toward some group identified by a marker such as race, religion, ethnicity, or sexual orientation, or toward an individual qua member of such a group'.²⁵ Sumner thus does not restrict himself to a relatively insignificant subclass of fighting words, as does Brink. Since his targets are opinions, he engages the most important challenges to freedom of speech. However, Sumner recognizes that the definition given above, which focuses solely on the content of the opinion, threatens to include too much. (In fact, as we shall see, it would ironically enough include *On Liberty*.) If every derogatory opinion about a particular religion were considered hate speech, for example, then this would flatly prohibit the non-coercive criticism that Mill considered vital to the very point of freedom of speech.

Sumner therefore refines his characterization by insisting that its content alone does not suffice to make an opinion count as hate speech. 'In order to qualify as hateful, the expression must have the primary purpose or function of arousing hatred or hostility toward the group in question', he writes; 'that is, the arousal of such an attitude or feeling must be what the material in question is *for*'.²⁶ This refinement – though necessary to avoid drastic expansion of prohibited speech – poses some obvious interpretive problems, since it is unclear (at best) how to determine an opinion's primary purpose or function. Opinions are often offered for many reasons; and critical opinions typically attempt both to persuade and to express, indeed to arouse, some sort of negative feeling. Moreover, the phrase 'hatred or hostility' presumably includes outrage, contempt and even ridicule. For example, Andres Serrano's notorious artwork *Piss Christ*, which depicts a crucifix submerged in the artist's urine, was the subject of controversy in the US; though the controversy was not over whether its creator should be punished or its display

permitted, but if it should receive public funding. By Sumner's criterion, this work seems clearly to constitute hate speech against Christians – unless we stipulate that hate speech only includes opinions hostile to certain groups (not including Christianity, of course).²⁷ Although this would be inconsistent with viewpoint neutrality, revisionists often appeal to multiculturalism in order to abrogate that principle in favour of protecting specific groups classed as victims.

The term 'multiculturalism' gets used in disparate ways and is often left crucially vague. In its weakest sense, where it simply celebrates the richness of a society in which disparate subcultures thrive and contribute to the whole, it seems entirely unobjectionable. In its stronger senses, however, the champions of multiculturalism embrace an untenably strong form of hyper-toleration: either cultural relativism, on which no culture is any better than another; or the related but less coherent view that no one outside an alien culture has standing to criticize it. In practice, the actual doctrine better resembles what might be called 'one-off' cultural relativism: All cultures are equally good – except for bourgeois Western culture, which is worst. This tendency manifests itself in the apologetics offered by Western humanists and social scientists for such barbaric cultural practices as clitoridectomy, honour killing, and the use of draconian punishments (such as gang rape and stoning to death) for such sexual crimes as adultery and homosexuality.²⁸ Even more pertinent to the current argument, some multiculturalists draw so crude a dichotomy between oppressors and oppressed that they fail to recognize even their own paradigms of hate speech – against women, people of colour, homosexuals and Jews – when uttered by protected groups who lie beyond the pale of criticism by white liberals.

Suppose that a society, labouring under such misguided hyper-toleration, were to suppress opinions critical of a cultural and religious practice such as polygamy, on the grounds that such criticism expressed hostility towards the religious beliefs of its practitioners. Obviously this conception of toleration cannot be Mill's, since he criticizes the (erstwhile) Mormon practice of polygamy as 'a mere riveting of the chains of one-half of the community, and an emancipation of the other from reciprocity of obligation toward them' (IV, 18). Moreover, in discussing intemperate discussion, which he calls the 'real morality of public discussion', he explicitly rejects an offence standard:

Much might be said on the impossibility of fixing where these supposed bounds [of fair discussion] are to be placed; for if the test be offense to those whose opinion is attacked, I think experience

testifies that this offense is given whenever the attack is telling and powerful. (III, 44)

In Mill's opinion, polygamy constitutes a 'retrograde step in civilization' (IV, 18). This criticism would surely have been deeply offensive and hostile to contemporary Mormons, since it impugns what they took to be divine revelation as retrograde and inferior. Yet Mill's conception of the Liberty of Thought aims to protect even harsh criticism of marginalized religious beliefs.

At the same time, it should be noted that Mill did not recognize the dilemma between freedom of speech and equal rights identified by Sumner and others. Rather, he offered his uncompromising defence of freedom of expression despite vivid awareness of the inequality of rights prevalent in Victorian England. Mill famously drew an analogy between contemporary marriage laws and slavery; and he advocated relations of equality between the sexes, in both political and personal life, which seemed fantastic in the nineteenth century. Thus he might have argued that, given the conditions of inequality pervading relations between the sexes, the advocacy of such a retrograde practice as polygamy should be silenced for the sake of equality, especially when based (as it was then and is now) on views about the proper role of women that would be considered demeaning by liberals, feminists and most modern Westerners. Yet this suggestion is anathema to Mill. Rather than consider any such approach – which would undermine the conclusions of Chapter 2 of *On Liberty* – Mill consistently advocated persuasion rather than suppression in his efforts to inculcate better social conditions. Despite his condemnation of Mormon religious practices, Mill insisted that the most that can be done on behalf of what he unabashedly refers to as 'other and better religions' is to preach against polygamy, and 'by any fair means (of which silencing the teachers is not one), oppose the progress of similar doctrines among their own people' (IV, 18; emphasis added).

Yet Sumner writes, 'As most liberals and feminists see things now, one of the core social values threatened by some forms of expression (such as hate literature and pornography) is equality: the equal status of minorities and women within the social fabric ... and their right to equal consideration and treatment'.²⁹ Before engaging the substance of this debate, we must clear up an unfortunate semantic difficulty. The term 'liberal' has become crucially ambiguous between the classical liberalism of Mill and the modern political position to which Sumner refers. While it would beg the question for me to assume a fundamental incongruity between Mill's liberalism and Sumner's, the fact that Mill evidently saw

no tension where Sumner finds a dilemma suggests enough disparity between their positions as to require disambiguation of the term 'liberal'. We can avoid this semantic problem by referring to the current political movement as *leftist* and to Mill's classical position as *liberal*. Perhaps classical liberalism leads, in the modern context, to the leftist view described by Sumner – or perhaps not. However that may be, Mill clearly rejected Sumner's approach to speech rights, which proposes to balance these liberties against other rights and social goods, such that leftists 'must therefore decide how far they are prepared to tolerate the expression of opinions which are themselves intolerant'.³⁰ No such decision arises on Mill's account, because the issue has already been settled by his arguments for the Liberty of Thought, which requires that *all opinions must be tolerated* – though such toleration does not of course preclude their criticism, even in such harsh terms as Mill employs against the Mormon religion.

Although I will reject Sumner's attempted adaptation of Mill's framework, his challenge to freedom of expression has some notable virtues. He does not ignore the costs of the suppression of speech, even if, as I will contend, he underestimates them in a crucial and systematic respect. Indeed, it stands as testament to Sumner's intellectual honesty that in his most recent work he has altered some of his previous conclusions. Whereas he once held that his balancing of rights favoured the suppression of hate propaganda but not of pornography, Sumner now balks, ultimately, at suppression in either case. His practical conclusions thus resemble mine (and Mill's); by his own account, it deviates from the conventional leftist position. 'Though [the American courts] are virtually alone in the larger global context', he concludes, 'perhaps they have got it right after all'.³¹ Nevertheless, Sumner supports this conclusion by advocating what he terms a *balancing act* between speech rights and equality rights, on which the costs and benefits of a specific opinion are weighed against each other, in determining whether its expression should be allowed or prohibited. But this is precisely what Mill seeks to rule out by arguing for the Liberty of Thought quite generally, regardless of the merits of any particular opinion.

My final reason for using Sumner as a foil, then, is that I will be arguing that the leftist conception of speech rights is fundamentally incompatible with the liberal defence of free speech developed by Mill, regardless of how the proposed balancing act comes out. Even when the same practical conclusion is reached, as in Sumner's latest work, this result follows in a way that renders the defence of freedom of expression insufficiently robust. This point proves to be of more than theoretical importance. The philosophical foundations of freedom of speech have

vital practical ramifications, as will be illustrated when we consider the respects in which political speech has become increasingly suppressed by law, as well as by social coercion, in those Western democracies that have adopted Sumner's preferred approach (though not his current conclusion). By Mill's standards, the Liberty of Thought does not obtain in Europe, where an increasing range of moral and political opinion deemed offensive or hateful has been prosecuted, sometimes successfully. And even the *threat* of punishment has serious unseen effects, it must be remembered, by chilling ethical discussion and political debate, since individuals and the media must consider which opinions risk prosecution.

More specifically, I will argue against the balancing approach to speech rights both as an interpretation of Mill and as a conception of freedom of speech. First, Sumner and his cohort misinterpret Mill. They place expression outside of the sphere of liberty, thereby removing it from principled protection and allowing freedom of speech to be outweighed by other considerations. Second, they misidentify both the leading purveyors of hate speech and the most powerful enemy of free expression in modern Western societies. This point is both important and deeply ironic. Its importance lies primarily in its demonstration of the ideological bias that infects the judgment of even the best philosophers and legal academics, which belies their ability to pull off the balancing act required by revisionism. Its irony is that, while leftists obsess over impotent white supremacist groups, they have ignored the rise of a truly violent and retrograde social movement seeking to undermine both the liberties of conscience and the equality of rights. I refer here to Islamism, which attempts to impose sharia religious law on speech – in particular, by imposing the death penalty on blasphemy and apostasy – as well as to enshrine sexual inequalities outstripping those of nineteenth-century Mormonism. (It should go without saying, but must not be left unsaid, that the religiously inspired political movement of Islamism is not equivalent to the religion of Islam.) Though leftists claim to focus on the social reality of power relations, they seem blinded by an uncritical acceptance of hyper-tolerant, one-off multiculturalism, with its simplistic dichotomy between the oppressors and the oppressed. This allows the deadly threat to the Liberty of Thought posed by Islamism to pass unseen, or unspoken, through the philosophical literature, rendering it academic in the most pejorative sense.

4.2 Getting Mill wrong about speech rights

I contend that two interpretive errors underlie those revisionist approaches to Mill that try adapting his framework to support conclusions far less

congenial to freedom of expression. First, according to a conventional reading of Mill, he adopts (what is commonly known as) a *harm principle*; but in fact he advocates what he calls the *principle of liberty*. This is crucial because Mill's commitment to a comprehensive Liberty of Thought expressly protects the freedom to express any opinion, as a matter of ethical discussion, regardless of its harmful consequences.³² Second, Mill does not defend freedom of speech on the grounds, often attributed to him, that a free 'marketplace of ideas' will best promote *true belief*; rather, he claims that the Liberty of Thought, including its expression, is the condition (generally) necessary for empirical and, especially, moral *knowledge*. The practical importance of this point lies in the fact that the relation between conditions of liberty and knowledge is not merely instrumental. Furthermore, the most common objection to this argument – that true belief might be best promoted by suppressing false opinion – does not apply analogously to knowledge.

Let's begin with the first issue, which Sumner's argument illustrates well; other notable exemplars include Schauer and Jonathan Riley.³³ All three claim that while Mill gives absolute freedom to *thought*, he is amenable, at least in principle, to restrictions on the *expression* of opinion. I think this reading quite wrong, and that this interpretive error explains what would otherwise be mysterious: why Mill exhibits none of their ambivalence about how to treat immoral or otherwise offensive speech. In this chapter I will lay out what I take to be compelling evidence in favour of my reading, though for some of the exegetical details I will have to cite other work. Fortunately, Sumner recognizes that the primary aim of the argument in *On Liberty* is to circumscribe a sphere of liberty within which the individual is protected from coercive interference. This constitutes the cutting edge of the principle of liberty: it serves to create a sphere of what Mill called *self-regarding* as opposed to *social* actions. As Sumner correctly notes, 'Whatever falls within the personal [self-regarding] realm receives principled protection: social interference, whether by official or unofficial means, is here absolutely prohibited'.³⁴ So we can work from this fundamental agreement.

What, then, characterizes self-regarding action for Mill? The conventional approach identifies the self-regarding with the harmless. It supports this gloss by attributing a harm principle to Mill, on which the fact that an act can harm others always provides a good, though not yet sufficient, reason for society to interfere with it; and only such harm provides reason for interference. It cannot be denied that Mill often uses such phrases as 'harm', 'harm to others' and 'harm to the interests of others' loosely, without always drawing qualifications he is sometimes

careful to make.³⁵ Since self-regarding acts are those protected in principle from social interference, as Sumner acknowledges, the attribution of a harm principle to Mill implies that all acts harmful to others (or, rather, sufficiently dangerous to non-consenting others) are other-regarding. The crucial theoretical problem with this approach arises from the fact that very few acts are so causally isolated as not to affect anyone else, and few acts that affect others cannot possibly harm them. Hence, were this how Mill circumscribes self-regarding action, then the sphere of liberty would be vanishingly small.³⁶

Moreover, this approach has a glaring exegetical flaw. Mill explicitly disavows the identification of the self-regarding with the harmful to others, in just the passage dedicated to explicating self-regarding action. He writes:

I fully admit that the mischief which a person does to himself may seriously affect, both through their sympathies and their interests, those nearly connected with him, and in a minor degree, society at large. When, by conduct of this sort, a person is led to violate a distinct and assignable obligation to any other person or persons, the case is taken out of the self-regarding class, and becomes amenable to moral disapprobation in the proper sense of the term. (IV, 10)

The gloss of 'self-regarding' as harmless to non-consenting others cannot be sustained in the light of Mill's overt admission that any self-destructive act can seriously harm others in ways to which they do not consent – indeed, it can harm their interests, not merely their sympathies.³⁷ Yet actions fall out of the self-regarding class not because they are dangerous or even harmful, but because they violate some obligation.

Mill must grant this point, given the explicit anti-paternalism and anti-moralism dictated by his principle of liberty. Any act that might be restricted on paternalist grounds could be cast as one that harms others: specifically, those who care about the agent for her own sake. Thus the very acts that society might attempt to interfere with on paternalistic grounds can be argued to be harmful to others precisely because they are harmful to the agent. This threatens to undermine the practical force of Mill's undeniable anti-paternalism, despite leaving it untouched in principle. An analogous point holds of Mill's anti-moralism: his denial that actions can properly be subject to social interference on the grounds that they are intrinsically wrong. Any wrong act tolerated by the state can honestly be claimed to cause (fitting) moral distress in those who care about the promotion of virtue and punishment of vice.³⁸

Commentators who take harm (to non-consenting others) to be the criterion of differentiation between self- and other-regarding action search, futilely, for reasons not to count moral distress or offence as a genuine harm. For example, Sumner writes: 'Moral distress ... is intelligible as a kind of harm but cannot be acknowledged as such for the purposes of the framework without threatening to annihilate the personal sphere of liberty in whose defense Mill was so passionate.'³⁹ Though true, this provides no rationale for ignoring such harm; it is merely an ad hoc proposal to ignore certain harms because acknowledging them would undermine Mill's conclusions.

I propose instead to take seriously what Mill says: that actions fall out of the self-regarding class not because they are harmful to others per se, but because they breach the agent's obligations or violate another's rights. (Again, not 'abstract' or natural rights but rights grounded ultimately in utility.) Of course, *much* harm to non-consenting others does constitute such a rights violation; this explains Mill's loose talk – which he elsewhere makes more precise – about harm to others. But it is important to realize that in Mill's view, certain harms to non-consenting others do not count as a violation of their rights. The key to understanding Mill's conception of the self-regarding is to recognize that the crucial distinction is not axiological: it does not differentiate bad harm from trivial or indifferent harm. Rather, the crucial distinction is between those harms that count as reasons for social interference and those that do not.⁴⁰ When supplemented with a compatible account of rights and obligations, this approach can solve the problem of how to defend a sphere of liberty despite the fact that almost everything we do affects others, and potentially harms them. So there are compelling theoretical reasons for adopting this reading. Moreover, it corresponds neatly with what Mill says, when he is being most careful, about what count as good reasons for social interference with individual liberty.⁴¹

Consider Mill's views about the genuine and substantial harms inevitably caused by competition:

Whoever succeeds in an overcrowded profession, or in a competitive examination; whoever is preferred to another in any contest for an object which both desire, reaps benefit from the loss of others, from their wasted exertion and their disappointment. But it is, by common admission, better for the general interest of mankind, that persons should pursue their objects undeterred by this sort of consequence. In other words, *society admits no right, either legal or moral, in the disappointed competitors, to immunity from this kind of suffering*; and feels

called on to interfere, only when means of success have been employed which it is contrary to the general interest to permit – namely, fraud or treachery, and force. (V, 3; emphasis added)

The distinction here has nothing to do with the severity of the harm, but with whether it is the sort of harm against which one has the right to protection from society. The harms of fair competition are not such harms, whereas one does have the right to social protection from fraud and the like. Clearly this does not rest on an axiological claim, since a fair harm might be extremely severe and an unfair harm relatively trivial. Disprove my theorem and you set back my central project, for example; beat me in tennis by consistently foot-faulting, counting on me not to call them in a friendly game, and you merely annoy me.⁴² But I have a legitimate *complaint* against you in the second case only.

The relevance of this discussion for Mill's defence of freedom of speech should be clear. If Mill identified self-regarding action with harmless action, then he would face a dilemma: He must claim either that the expression of any opinion at all is harmless, or that the expression of harmful opinions can be suppressed. Since the first horn of the dilemma seems hopeless, Sumner, Riley and Schauer all conclude that speech falls in the other-regarding class and, hence, is legitimately subject to social interference. Indeed, Sumner claims that this point 'has far-reaching consequences for [Mill's] defense of freedom of discussion'.⁴³ But if they are wrong on this point, then the fact that Mill actually places the expression of opinion and sentiment within the Liberty of Thought, which forms the first branch of the sphere of liberty, should have important ramifications to the contrary. And so it does – but these implications are not entirely straightforward. Although self-regarding action is afforded absolute protection in Mill's free society, it does not follow that other-regarding action can always be legitimately regulated. The theoretical classification of an act does not fully determine the practical implications for Mill, since some other-regarding actions should be protected for more pragmatic reasons. Mill supports free trade, for instance, despite holding expressly that trade is, in principle, an other-regarding act. Although 'the principle of individual liberty is not involved in the doctrine of Free Trade' – except when regulation makes certain goods impossible to procure, in which case it violates the liberty of potential consumers – Mill nevertheless supports the doctrine on other grounds: trade restrictions 'are wrong because they do not really produce the results which it is desired to produce by them' (V, 4). To his credit, Sumner recognizes this point and draws exactly the right conclusion

about free trade; but he reads Mill as placing speech with trade, outside the sphere of liberty.

Yet this interpretation conflicts with Mill's explicit characterization of the sphere of liberty as having three branches, the first of which comprises 'liberty of conscience, in the most comprehensive sense', understood to demand 'absolute freedom of opinion and sentiment on all subjects' (I, 12).⁴⁴ Consider how Mill introduces the second chapter of *On Liberty*, entitled 'The Liberty of Thought and Discussion':

It will be convenient for the argument, if, instead of at once entering upon the general thesis [of the principle of liberty], we confine ourselves in the first instance to a single branch of it, on which the principle here stated is, if not fully, yet to a certain point, recognized by the current opinions. This one branch is the Liberty of Thought: from which it is impossible to separate the cognate liberty of speaking and of writing. (I, 16; emphasis added)

According to Mill's description, the second chapter of *On Liberty* focuses specifically on the first branch of the sphere of liberty, which includes the freedom of conscience in the most comprehensive sense. Indeed, the arguments of that chapter concern public expression more than private thought, and it would be bizarre for Mill to discuss thought and expression together if he thought that they rested on different principles. But the fact that he thinks them inseparable in practice, and supported largely by the same reasons, belies the claim that speech is unlike thought in being other-regarding. Although it may be unclear *why* Mill thinks this separation impossible, the fact that he does seems evident.

Compare Mill's treatment of free trade and free speech, which Sumner considers analogous – both being other-regarding and hence, in principle, subject to social interference. Mill expressly holds that 'trade is a social [i.e. other-regarding] act' and that free trade rests on 'grounds different from ... the principle of individual liberty asserted in this Essay' (V, 4). This explains why he discusses trade in Chapter 5, where he considers practical applications that circumscribe the limits of his fundamental principle. In stark contrast, Mill defends freedom of speech together with freedom of thought, and declares both thought and its expression to constitute the first branch of the principle of liberty. Moreover, he overtly assimilates thought and speech by terming them both *opinion* as opposed to *action*. Whereas Chapter 2 concerns opinion, Chapter 3 concerns the application of the principle of liberty to the realm of action. Hence, Mill begins the latter chapter by considering performative

speech acts that, unlike expressions of opinion and sentiment, need to be treated as actions rather than opinions. He even writes: 'No one pretends that actions should be as free as opinions. On the contrary, even opinions lose their immunity, when the circumstances in which they are expressed are such as to constitute their expression a positive instigation to some mischievous act' (III, 1). This clearly implies that in ordinary circumstances, where the expression of a thought is merely an assertion, it counts as an opinion rather than action, which is why it then receives the immunity typically granted to opinions, whether privately thought or publicly expressed in speech or writing.

This evidence should suffice to show that – contrary to the popular interpretation offered by Sumner, Schauer and Riley (among others) – Mill held that both thought and its expression are part of the basic sphere of liberties established by his fundamental principle. Of course, one can still wonder why Mill held this view. In order to understand his argument, we must put to rest another misconception, concerning his primary justification for the doctrine of Liberty of Thought. What can Mill mean by claiming that it is impossible, in practice, to separate thought from expression? Surely it is psychologically possible to think something and yet refrain from saying it; sometimes we actually succeed in the endeavour. Again an idea derived from Mill often gets attributed to him, with bad results. Just as Mill does not speak of a harm principle, neither does he refer to the marketplace of ideas; those phrases are due to Joel Feinberg and Justice Holmes, respectively. Holmes claimed that 'the best test of truth is the power of the thought to get itself accepted in the competition of the market'.⁴⁵ While Holmes speaks of the *test* of truth, the marketplace-of-ideas metaphor is now commonly understood as claiming that free trade in ideas will be maximally productive of true belief. It is also commonly ascribed to Mill.⁴⁶

However, Mill's main argument for why speech rights are practically inseparable from the liberty of thought concerns the conditions of justification and, hence, knowledge. Mill's argument is not as straightforwardly consequentialist as the claim, commonly associated with the marketplace of ideas, that a free market maximizes true belief. These two points undermine the objection that the suppression of false but seductive opinions would likely bring about more true belief than would the Liberty of Thought. Mill's argument primarily concerns justification rather than truth. In his view,

Complete liberty of contradicting and disproving our opinion, is the very condition which justifies us in assuming its truth for purposes of

action; and on no other terms can a being with human faculties have any rational assurance of being right. (II, 6)

This claim can be read too strongly, but a charitable reading renders it more plausible. It would be far-fetched to hold that our currently warranted beliefs – say, in physics – would lose their justification immediately upon the suppression of contrary opinion. Yet the knowledge of the next generation of physicists, who would be forced to rely on the testimony of others, and such arguments against countervailing opinions as they can privately imagine, would be compromised. More generally, when opinions conflicting with orthodoxy are suppressed, we must assume the infallibility (on these issues) of those who place such opinions beyond debate.

Thus Mill's argument is directed at the conditions of justification and knowledge, not at true belief as such – let alone at optimal promotion of the truth. 'The beliefs which we have most warrant for', he writes, 'have no safeguard to rest on, but a standing invitation to the whole world to prove them unfounded' (II, 8). This conception of justification makes clear why Mill repeatedly insists that his argument for freedom of expression holds regardless of the truth of the opinion in question. At this point, someone might try arguing that it is equally an empirical claim that knowledge is promoted by freedom of speech. But the two arguments are not analogous. While belief in P might be promoted by various means, including brainwashing, knowledge of P cannot be promoted by any method that undermines our justification for believing P. Since Mill holds that the suppression of contrary opinions ultimately does just that, he concludes that the Liberty of Thought is a necessary condition for knowledge, though it only contingently promotes true belief. Although we do not lose our knowledge of P immediately upon suppressing contrary opinions, we thereby destroy the conditions under which knowledge of P can be obtained and perpetuated. This is not to say that it's *impossible* for the suppression of one opinion somehow to promote other knowledge; the disanalogy isn't that stark. Perhaps even though our knowledge of P is undermined by the prohibition of contrary opinions, we can thereby promote knowledge of Q, R and S. But this possibility seems far-fetched, especially when one considers that P must not figure in the justification of those other propositions either, or the suppression of its negation will undermine that knowledge too. One need not embrace any strong and controversial form of holism to appreciate that the justification of various beliefs will be so interconnected as to make implausible the suggestion that we can isolate the effects of

suppressing opinion, so as to keep such violations of the Liberty of Thought from broadly undermining our knowledge.

Mill's argument illuminates the partial truth, as well as the larger error, of the one-off multiculturalism currently in vogue among the intelligentsia. The toleration Mill extends to all opinions, which allows them to be expressed and discussed regardless of their truth, morality or even harmfulness, should be applied to alien cultures and practices. Indeed, we must not only tolerate but study opinions antagonistic to the moral consensus of society (or of its elites), on pain of losing our own ethical knowledge by undermining our ability to respond critically to opposing arguments. 'The steady habit of correcting and completing his own opinion by collating it with those of others', Mill writes, 'so far from causing doubt and hesitation in carrying it into practice, is the only stable foundation for a just reliance on it' (II, 7). Mill believed in what he unabashedly called civilization, and he championed its eventual triumph without ignoring the rampant imperfections and injustices of every extant or historical state. Yet his confidence that the salutary form of multiculturalism he advocated would not degenerate into a misguided hyper-toleration, which embraces cultural relativism or precludes criticism of barbaric laws and social arrangements, now seems dubious.

Revisionists eschew one of Mill's deepest convictions: 'the necessity to the mental well-being of mankind (on which all their other well-being depends) of freedom of opinion, and freedom of the expression of opinion' (II, 39). If I am right, they do so on a fundamentally flawed reading of *On Liberty*. The most important point for our purposes is not the faulty interpretation of Mill, however, but the fact that two of the most popular objections to his defence of freedom of speech rest on these errors. The attribution of a harm principle to Mill allows revisionists to claim that speech is other-regarding, and that harmful speech should be subject to a balancing test, notwithstanding Mill's peremptory defence of the Liberty of Thought. And the attribution of the marketplace of ideas argument to Mill makes his argument for freedom of speech depend on contingent views about the social conditions maximally productive of true belief, rather than his explicit claims about the conditions necessary for the acquisition and retention of knowledge.

4.3 The irony of free speech revisionism

At its best, free speech revisionism manifests good intentions and invokes intellectually honest arguments against the classically liberal

conception of freedom of expression. While I have argued against the suggestion that this revisionist approach rests on Millian principles, these interpretive issues are of only secondary import. The more important point is that despite his unfashionable absolutism – or perhaps because of it – Mill was more perspicacious about social and political reality than are the revisionists. Whereas Mill astutely assessed the predictable costs and abuses of the suppression of speech, the debate in the academy has grown increasingly academic in the pejorative sense. The principal irony of free speech scepticism and revisionism is that, while claiming to be better grounded in political reality, the revisionists have ignored the burgeoning threat to robust debate and diversity of opinion throughout the liberal Western democracies that supposedly cherish it – especially in those countries that have adopted the balancing approach to speech rights championed by Sumner and many others. Though I will begin with examples drawn from Sumner to illustrate this point, in fact I consider him the most clear-sighted of the revisionists.

Consider first how Sumner identifies his antagonists: 'While some hate propaganda is produced and disseminated by isolated individuals, most of it is generated by organized neo-Nazi, white supremacist, or homophobic groups.'⁴⁷ Despite his realization that well-funded and organized groups create and distribute hate literature throughout the West, Sumner seems unaware that the main purveyors of overtly anti-semitic material (as well as literature that qualifies as hate speech against women, homosexuals and Christians) are Islamists, especially but not exclusively those funded by the Saudi Arabian government, who are bent on converting more moderate Muslims to their radical, and indeed hateful, religious ideology.⁴⁸ To illustrate this point with just one example, Franco-Czarist forgery 'revealing' the Jewish conspiracy for world domination, continues to top the hate speech best-seller list. In addition to being purveyed in its original form, serialized versions have been broadcast via satellite throughout Europe (via the government-owned Egyptian station ETV and Hizbullah's *Al-Mammar* channel).⁴⁹

Next consider Sumner's treatment of the objection that hate speech legislation could target advocacy of the opinion that homosexual behavior is inherently immoral – a view, however objectionable, which surely counts as a paradigmatic example of ethical and political opinion. He asserts:

I am confident, however, that most people would dismiss as ridiculous any attempt to bring criminal sanctions to bear on opinions

such as these, however hateful they might be, when they are expressed by respectable figures in a mainstream newspaper or an academic journal.⁵⁰

Yet Sumner's confidence seems misplaced. In 1993 (about ten years prior to the publication of these words), the eminent Princeton historian Bernard Lewis had already been convicted of genocide denial for expressing doubts, in an interview with *Le Monde*, about whether the Turkish mass murder of Armenians during the First World War was a planned campaign of extermination.⁵¹ Even if incorrect, this opinion surely should be criticized with countermanning evidence. Instead, the French government has declared it to be an 'objective fact' – and hence beyond the pale of argument – that this atrocity counts as genocide.

Much to his credit, Sumner appreciates the dangers of selective prosecution of hate speech; indeed, that is one of his main reasons for ultimately forgoing its suppression. But his discussion does not fathom the inevitability or intractability of the problem, partly because he focuses so narrowly on the white supremacist bugbear as to ignore the hate propaganda issuing from Islamist interpretations of sharia, with its rampant subjection of women, persecution of homosexuality and demonization of 'infidels', including those Muslims deemed to be apostates. It is of course unthinkable that Iranian President Mahmoud Ahmadinejad, who has repeatedly called the Holocaust a myth and a fairy tale, might be prosecuted in Europe for genocide denial or minimization. The combination of censorship (of ourselves) and hyper-tolerance (of the Other), characteristic of one-off multiculturalism, bizarrely corroborates the words of Iran's Foreign Ministry Spokesman Hamid-Reza Assefi. Cynically inviting British Prime Minister Tony Blair to the recent Iranian conference dedicated to 'scientifically investigating' whether the Holocaust occurred, Assefi declared: 'Blair can hear here [in Tehran] issues which he cannot hear over there [in London].'⁵²

Mill was unwilling to allow any political or social group, no matter how well intentioned, to discriminate between those opinions that can be tolerated and those that must be suppressed. By contrast, when Fiss considers state legislation suppressing opinion, he displays a trust in the judiciary that would be summarily rejected in other contexts. Fiss writes,

[A] heavy burden of scrutinizing the state's action should fall to the judiciary, especially because it stands above the political fray. In discharging this task, the judiciary should not look at the motive – stated or otherwise – for the action but must carefully determine what the

overall effect of the state regulation [suppressing speech] is upon public debate. The court must ask itself: Will the regulation actually enhance the quality of debate, or will it have the opposite effect?⁵³

Ironically, the putative disinterestedness of the judiciary has been challenged most vociferously by legal realism and its more radical offspring, from which emerged the silencing argument for censorship that Fiss currently champions.

But one need not accept any radical doctrine, just Mill's liberal caution, to find Fiss's trust in the apolitical fair-mindedness of the judiciary naive. Nor is it difficult to find countermending evidence with respect to speech rights. For example, Phillipe Karsenty, founder of the media-watch group Media-Ratings, has recently been convicted in France for public defamation of the honour and reputation of a state-owned television channel (France 2) and two of its reporters.⁵⁴ Karsenty questioned the veracity of France 2's reporting of the notorious Mohamed al-Dura incident, which became a flashpoint of the 'Al Aqsa' intifada of 2000. The incriminating article gave concrete details suggesting deliberate falsification by France 2 reporters – most tellingly, their prevarication about additional footage supposedly verifying their account, which proved not to exist – and called for their dismissal for concealing evidence. The substance of these charges was not refuted in court, and the prosecution offered no vindication of the France 2 report. Yet Karsenty was convicted and fined, and future investigation into the reports of the public media thereby sheltered from critical examination. By protecting state-run media from criticism, the French judiciary has undermined debate on exactly the sort of moral and political issues most central to the Liberty of Thought.

Despite Fiss's credulity about the ability of the judiciary to enhance debate by suppressing opinion, he should be given his due on another point. Even if the motives for the suppression of opinion are good, that is insufficient: the more important question is its effect on diversity of opinion and the robustness of political debate. On this point Brink seems to go astray by focusing exclusively on the *rationale* and *aims* of speech regulation, as opposed to its actual effects. In claiming that his revisionist take on Millian principles puts the debate over hate speech into its proper perspective, Brink considers motives rather than results. He thus claims it to be 'absurd to suppose, as many have, that hate speech regulations reflect a concern for political correctness'. Rather,

The rationale for hate speech regulation is not to establish, by force if necessary, a [leftist] consensus in speech and thought. Quite to

the contrary, by curbing the most thoughtless, harmful, and divisive expressions of discriminatory attitudes, hate speech regulations aim to establish the kind of culture in which vigorous discussion and debate among disparate views can be both possible and profitable.⁵⁵

Let's grant, for the sake of argument, that Brink is right about his narrow conception of hate speech, strictly limited to a subclass of fighting words. Even so, revisionists such as Brink, who want to build a case for the suppression of speech on liberal principles, have difficulty admitting the explicitly illiberal aims of the free speech sceptics.

Consider that Charles Lawrence – whom Brink praises for his 'eloquent defense of hate speech regulations' – advocates the suppression not only of racial epithets but also of putatively racist opinion.⁵⁶ Moreover, he does so expressly in service of a political ideology. Thus Lawrence and his co-authors write, approvingly: 'The struggle against institutional, structural, and culturally ingrained racism and the movement toward a fully multiculturalist, postcolonial university is central to the work of the liberationist teacher.'⁵⁷ In light of such statements and the overt agenda of the liberationists, Brink's charge that opponents of hate speech legislation are 'profoundly confused' for their 'absurd' worries about the imposition of political orthodoxy seems uncharitable, as well as unconvincing. Indeed, Mill himself expressed exactly the concern Brink disparages:

Protection, therefore, against the tyranny of the magistrate is not enough: there needs protection also against the tyranny of the prevailing opinion and feeling; against the tendency of society to impose, by other means than civil penalties, its own ideas and practices as rules of conduct on those who dissent from them ... (I, 5)

Although the phrase has become clichéd by overuse, it is precisely apposite: Mill is worried here about political correctness. When liberal defenders of the Liberty of Thought are demeaned as 'unconscious racists', Mill's concern that dissenting opinions need protection against social punishment seems prescient.

In this light, recall Schauer's flippancy assimilation of Salman Rushdie's novel, *The Satanic Verses*, with the Ayatollah Khomeini's fatwa, which constituted a death sentence on Rushdie. This conflation is unworthy of a scholar of Schauer's ability, and I suspect that it displays carelessness rather than expressing his considered moral opinion. But this carelessness

is noteworthy, as it reflects something about the climate of opinion in which Schauer is writing – what Lawrence and his co-authors call the multiculturalist, post-colonial university. Schauer's words are telling, because one of our leading scholars of the First Amendment here does not just ignore but makes light of the greatest extant threat to the Liberty of Thought: the sharia laws proscribing death for supposed blasphemy, apostasy or offence to Islam and, in particular, to its prophet, Mohammed. A rising tide of violent intolerance of opinion, backed by death threats and even assassination, now washes over Europe – denied, ignored or mocked by many of our most eminent scholars, some of whom still claim to defend Millian principles.

I have argued that the contemporary academic debate suffers from a distinct lack of realism. It is entirely predictable that what will in fact get targeted by hate speech legislation will, much more simply, be opinions deemed to be immoral – because racist, sexist or otherwise offensive – by those who purport to represent the moral consensus. Moreover, such opinions will be far more likely to be punished when expressed by those considered oppressors rather than the oppressed. Just as predictably, this crude dichotomy between victim and victimizer systematically ignores inconvenient social facts about power relations, even while claiming to track them with a 'sharp Foucauldian lens'.⁵⁸ There is a deadly threat to the Liberty of Thought abroad, but also a more subtle threat to opinions that deviate from the political orthodoxy of the intelligentsia. This too Mill saw and decried, though his current followers fail to do justice to his legacy. 'Our merely social intolerance kills no one, roots out no opinions, but induces men to disguise them, or to abstain from any active effort for their diffusion', Mill wrote, '[b]ut the price paid for this sort of intellectual pacification, is the sacrifice of the entire moral courage of the human mind' (II, 19).⁵⁹

Notes

- 1 Citations to John Stuart Mill, *On Liberty*, will be given in the text as (chapter, paragraph). The quoted phrases above can be found at (I, 13), (II, 1fn) and (II, 11), respectively. Mill sums up his view concisely by claiming it to be imperative that 'human beings should be free to form opinions, and to express their opinions without reserve' (III, 1).
- 2 The second branch comprises the 'liberty of tastes and pursuits', and the third branch the freedom 'to unite with others' – both within limits given, roughly and elliptically (or so I contend), as 'not involving harm to others' (I, 12). For a discussion of my gloss of this phrase, and of why Mill's principle of liberty does not constitute a harm principle as commonly understood, see Section 4.2.

- 3 According to Mill the 'real morality of public discussion' lies not in what opinions are expressed but in the manner in which they are asserted. And the worst offence of 'intemperate discussion', which he deplores but thinks impossible to prevent, is 'to stigmatize those who hold the contrary opinion as bad and immoral men' (III, 44).

- 4 'Even opinions lose their immunity', he writes, 'when the circumstances in which they are expressed are such as to constitute their expression a positive instigation to some mischievous act' (III, 1). For discussion of Mill's treatment of performative speech acts, which constitute action rather than opinion, see Daniel Jacobson, 'Mill on Liberty, Speech, and the Free Society', *Philosophy & Public Affairs*, 29 (2000), 276–309.

- 5 The text of the First Amendment is as follows: 'Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof, or abridging the freedom of speech, or of the press; or the right of the people peaceably to assemble, and to petition the government for a redress of grievances'. Whether for better or worse, the fact of American exceptionalism is uncontroversial. Thus Frederick Schauer writes: 'On almost every issue of free speech theory, doctrine, and practice, virtually every country on the face of the earth diverges from the United States, and diverges in the direction of lesser protection'. Frederick Schauer, 'The First Amendment as Ideology', *William and Mary Law Review*, 33 (1992), 857.

- 6 By comparison, consider this statement from the introduction of an influential book by American legal scholars attacking freedom of speech and its constitutional protection: 'The first amendment arms conscious and unconscious racists – Nazis and liberals alike – with a constitutional right to be racist' (Mari J. Matsuda, Charles R. Lawrence III, Richard Delgado, and Kimberlé Williams Crenshaw, 'Introduction', *Words That Wound: Critical Race Theory, Assaultive Speech, and the First Amendment* (Boulder, CO: Westview Press, 1993), 15). This characterization of liberals as 'unconscious racists' is an exemplar of the sort of intemperate discussion Mill deplores (see note 3).

- 7 See Frederick Schauer, 'The Ontology of Censorship', in Robert C. Post (ed.), *Censorship and Silencing: Practices of Cultural Regulation* (Los Angeles, CA: Getty Research Institute for the History of Art and the Humanities, 1998), esp. 162.
- 8 Schauer, 'The Ontology of Censorship', p. 149. Taken in context, this passage leaves unclear whether Schauer is speaking in his own voice here; however, the paper as a whole clearly embraces this view – as the following examples will illustrate.

- 9 I doubt Schauer would dispute my characterization of some such influences as tenuous or innocuous. Consider that one of his examples adverts to a boycott of French wine that makes it impossible (at least in certain circles) to buy without making a political statement, however inadvertently. For Schauer, this counts as an action of others that stifles our expressive capacities and, hence, as a form of censorship. See Schauer, 'The Ontology of Censorship', esp. p. 159.

- 10 Schauer, 'The Ontology of Censorship', p. 160.
- 11 For more discussion of the specious sophistication of these confections, and their untenable social and political implications, see Daniel Jacobson, 'The Academic Betrayal of Free Speech', *Social Philosophy and Policy*, 21 (2004), 48–80.

- 12 Owen Fiss, *The Irony of Free Speech* (Cambridge, MA: Harvard University Press, 1996).
- 13 Fiss, *The Irony of Free Speech*, p. 18.
- 14 Fiss, *The Irony of Free Speech*, p. 17.
- 15 Fiss, *The Irony of Free Speech*, p. 16.
- 16 Fiss, *The Irony of Free Speech*, p. 18. See also Mill, *On Liberty*, esp. Ch. 3.
- 17 Fiss, *The Irony of Free Speech*, p. 22.
- 18 We need not advert to Soviet biology here, as there have recently been suggestions that global warming minimization should be criminalized on the model of genocide minimization.
- 19 Post, 'The Ontology of Censorship', p. 2.
- 20 The viciousness of attacks on those minorities who deviate from leftist orthodoxy can be seen in the work of Amiri Baraka, then (tax-funded) poet laureate of New Jersey, whose 2002 poem, 'Somebody Blew Up America', asks: *Who do Tom Ass Clarence work for / Who doo doo come out the Colon's mouth / Who know what kind of Skeeza is a Condoleezza [sic] / Who pay Connelly [sic] to be a wooden negro*. Some textual exegesis: Clarence Thomas is a Justice of the Supreme Court; Colin Powell was then Secretary of State; Condoleezza Rice then National Security Advisor; and Ward Connerly an activist against race-based affirmative action. All are African-Americans, as is Baraka. It is an interesting question whether this work qualifies as hate speech under the criteria to be introduced, as Baraka's poem continues: *Who knew the World Trade Center was gonna get bombed / Who told 4000 Israeli workers at the Twin Towers / To stay home that day*. The question may rest on whether we disparage Baraka's demographic skills or – more plausibly, if not more charitably – inferred that by 'Israel' he means Jewish. In 2005, Baraka would be officially honoured as 'one of America's foremost literary figures' by Columbia University's Middle East Institute.
- 21 David O. Brink, 'Millian Principles, Freedom of Expression, and Hate Speech', *Legal Theory*, 7 (2001), 119–57. He begins: 'Hate speech employs discriminatory epithets to insult and stigmatize others on the basis of their age, gender, sexual orientation, or other forms of group membership' (p. 119).
- 22 A Millian need not hold, with the US Supreme Court in *Cohen v. California*, that a sentiment expressed in vulgar language cannot be expressed otherwise. Furthermore, the most radical aspect of Brink's argument – its rejection of viewpoint neutrality – need not be embraced in order to defend speech codes that prohibit racial slurs regardless of who they target.
- 23 Mill's free society offers equal rights and demands reciprocal obligations from its citizens, including a limited number of claim rights, such as basic sustenance and education – also prerequisites for ethical development. In addition, Mill advocates free trade and representative government, not as basic rights but as the best policies under most modern conditions.
- 24 Although this point is explicitly developed in (III, 1) et seq., it gets curiously overlooked by many free speech sceptics, as is evident in the preceding quotation from Schauer comparing novels to fatwas, as 'simply speech'. Cf. Daniel Jacobson, 'Freedom of Speech Acts? A Response to Langton', *Philosophy and Public Affairs*, 24 (1995), 64–79.
- 25 L. W. Sumner, *The Hateful and the Obscene: Studies in the Limits of Free Expression* (Toronto: University of Toronto Press, 2004), 14–15. Sumner's other main topic is pornography, but I will only be considering hate speech here.
- 26 Sumner, *The Hateful and the Obscene*, p. 15.
- 27 An anonymous referee suggests that the implicit stipulation might rather be that Serrano is himself a Christian – albeit only in some extremely attenuated sense – and that this is taken as excusatory. Whether or not this is correct, my concern lies with the failure to apply consistently even norms defining hate speech, which applies in either case. Indeed, I find it curious, when teaching these issues, how many of my students ingeniously attempt to deny that works like *Piss Christ* express hatred or contempt of Christianity. They seem to have absorbed a hermeneutics of almost infinite plasticity with respect to 'our' most popular religion yet utmost sensitivity to the religions of 'others' – though of course typically they are not themselves practising Christians. To be clear, I am neither Christian myself nor personally offended by the likes of *Piss Christ*. (However, as an aesthetic matter, I think the genre of reproducing simulacra of Christian symbols composed of or submerged in excreta has grown stale.)
- 28 For example, Robert Hinde notes that 'for those involved, genital modification [i.e. clitoridectomy] is usually seen as a means of acquiring adult status and full access to group customs, law and religion, and thus as an important part of their cultural heritage'. Hinde, *Why Good is Good: The Sources of Morality* (London: Routledge, 2002). See also Daniel Jacobson, 'Does Social Intuitionism Flatten Morality or Challenge It? Comment on Haidt and Bjorklund (2006)', in Walter Sinnott-Armstrong (ed.), *Moral Psychology*, Vol. 2, 'The Cognitive Science of Morality: Intuition and Diversity' (Cambridge, MA: MIT Press, 2008).
- 29 Sumner, *The Hateful and the Obscene*, pp. 28–9.
- 30 Sumner, *The Hateful and the Obscene*, p. 52.
- 31 L. W. Sumner, 'Hate Crimes, Literature, and Speech', in R. G. Frey and Christopher Heath Wellman (eds), *A Companion to Applied Ethics* (Malden, MA: Blackwell, 2003), 142–53.
- 32 However, certain token expressions of opinion can be restricted when, in context, they constitute a violation of rights – as in Mill's famous corn dealer example. See Jacobson, 'Mill on Liberty'.
- 33 Thus Schauer writes: 'A close reading of *On Liberty* reveals that, as between self-regarding and other-regarding acts, Mill treats speech as a member of the latter category', though he offers no such reading in support of this claim. See Frederick Schauer, *Free Expression: A Philosophical Inquiry* (Oxford: Oxford University Press, 1982), 11. See also Riley: 'Strictly speaking, expression is legitimately subject to social control, [Mill] seems to be saying, since it is conduct which can harm others'. Jonathan Riley, *Mill on Liberty* (New York: Routledge, 1998), 49. Both authors focus on an ambiguous passage in *On Liberty*, while ignoring an unambiguous passage (quoted later) where he refers to the Liberty of Thought as one branch of the sphere of liberty.
- 34 Sumner, *The Hateful and the Obscene*, p. 25. Sumner's terminology differs superficially from Mill's, and both are potentially misleading. Neither 'social' nor 'public' is an ideal complementary to 'self-regarding', since they seem to give significance to an irrelevant matter: whether another person is involved, as participant or witness. These are terms of art for Mill; hence, I will use the

more technical-sounding terms *self-regarding* and *other-regarding* to make his central distinction.

35 In fact, all interpreters must read Mill elliptically, since by harm he must really mean something more like the risk of harm, in order to make sufficiently dangerous actions (such as drunk driving, to take an anachronistic example) illegal *per se*, not only when they result in injury to others. Moreover, 'others' must be understood as non-consenting others, since Mill expressly holds that individuals can join together consensually to pursue their good as they see fit, subject to the same constraints as are placed on a single person.

36 And yet it would also be too large, in that it cannot adequately accommodate the 'positive compulsions' that Mill expressly allows – such as the powers of conscription, taxation and subpoena – which are clearly mandatory for any workable state. This double-edged problem – that the harm principle commonly attributed to Mill is both too strong and too weak to be tenable – is a central concern of my paper, 'Mill on Liberty'.

37 This is significant because some commentators have tried to read Mill as differentiating between harm and harm-to-interests, where the latter notion makes the crucial divide between the self-regarding and the social. This suggestion is on the right track but not quite correct in detail. See esp. J. C. Rees, 'A Re-Reading of Mill On Liberty', in John Gray and G. W. Smith (eds), *J. S. Mill On Liberty in Focus* (London: Routledge, 1991).

38 Indeed, the broader point holds of every act anyone *considers* immoral, whether correctly or not, since even unfitting distress or offence genuinely hurts.

39 Sumner, *The Hateful and the Obscene*, p. 51.

40 While this might seem viciously circular, it is only superficially circular. The harms that counts as reasons for interference can be identified, through indirect utilitarian argument, independently of the principle of liberty's claim that only (such) harms provide reasons for interference. See Jacobson, 'Mill on Liberty'.

41 He is often less careful and speaks indifferently of harm, harm to others, harm to the interests of others, and those harms that constitute violations of their rights. I propose that we must take his most careful formulation to be the official one. Mill writes that the conduct we are bound to observe toward others, 'consists first, in not injuring the interests of one another; or rather *certain interests, which, either by express legal provision or by tacit understanding, ought to be considered as rights*' (IV, 3; emphasis added). This spells out what is left dangerously elliptical in some other formulations: the fact that not all harm, but only harm that counts as a violation of another's rights, places an action outside the sphere of liberty.

42 Note too that Mill provides a perfectly good, indirect utilitarian reason to care about fairness: 'it is, by common admission, better for the general interests of mankind, that persons should pursue their objects undeterred by this sort of consequences'; society should interfere 'only when means of success have been employed which it is contrary to the general interest to permit – namely, fraud or treachery, and force' (V, 3). I owe the tennis example to Justin D'Arms.

43 Sumner, *The Hateful and the Obscene*, p. 25.

44 Sumner, like Schauer and Riley, seems to be led astray by an ambiguity in the next line: 'The liberty of expressing and publishing opinions may seem to fall under a different principle, since it belongs to that part of the conduct of an individual which concerns other people; but, being almost of as much importance as the liberty of thought itself, and resting in great part on the same reasons, is practically inseparable from it' (I, 12). The ambiguity, of course, lies in the fact that the 'since' clause can be read as being in the mouths of Mill's antagonists (those who hold that expression does not fall under the principle of liberty) or in his own voice. Careful exegesis also shows that by 'practically inseparable' Mill does not mean *difficult* to separate in principle, but impossible to separate in *practice*. Note that Mill unambiguously uses the word 'practically' to mean 'in practice' at (I, 4) and (II, 25). However, the definitive evidence comes from the quotation that follows immediately in the text.

45 Justice Oliver Wendell Holmes, Jr., in his dissent to *Abraham v. US*.

46 See for example David Braddon-Mitchell and Caroline West, 'What is Free Speech?', *The Journal of Political Philosophy*, 12 (2004): 437–60. They write, 'the justification with which we will be principally concerned is the classic liberal justification of free speech – the idea of the marketplace of ideas due to John Stuart Mill' (pp. 439–40). They continue, '[u]nlike Mill, we do not assume that the condition in which ideas compete in such a way as to make truth most likely to emerge is one that is best realized in a free or unregulated market' (p. 441).

47 Sumner, *The Hateful and the Obscene*, p. 162.

48 For a voluminous collection of evidence, see Freedom House, *Saudi Publications on Hate Ideology: Invade American Mosques*, available at <<http://www.freedomhouse.org/region/publications/Saudi%20Report/FINAL%20FINAL.pdf>>.

49 'Egypt aims "anti-Semitic" series', *BBC News World Edition* (7 November 2002). See also 'Satellite Network Recycles The Protocols of the Elders of Zion', <http://www.adl.org/special_reports/protocols/protocols_recycled.asp>.

50 Sumner, *The Hateful and the Obscene*, p. 196.

51 While two civil suits and one criminal were dismissed, Lewis was convicted in one civil suit for failing to be sufficiently objective about events that had been officially certified by the European Union as genocide.

52 *The Times of India* (29 January 2006).

53 Fiss, *The Irony of Free Speech*, p. 24.

54 See 'Can Internet criticism of Mideast news footage be slander?' (17 September 2006); 'French broadcaster wins shooting report libel case' (20 October 2006), *International Herald Tribune*.

55 Brink, 'Millian Principles', p. 154. I have replaced the word 'liberal' with 'leftist' for reasons given earlier.

56 Brink, 'Millian Principles', p. 155. Lawrence of course also co-authored the remark calling liberals 'unconscious racists'. As he explains, when racial minorities engage in 'heckling, or booing of racist speakers, civil libertarians often accuse them of private censorship, of seeking to silence opposing points of view. ... [I]t is no wonder that the victims of racism do not consider first amendment absolutists allies'. Charles R. Lawrence III, 'If He Hollers, Let Him Go: Regulating Racist Speech on Campus', in Matsuda *et al.* (eds), *Words That Wound*, p. 83. Indeed, the hecklers' veto is now

wielded quite commonly against dissenters from leftist orthodoxy on campus.

57 Matsuda, et al., *Words That Wound*, p. 14.

58 This phrase is Robert Post's. See Post, 'Censorship and Silencing', p. 2.

59 I am grateful for helpful comments from Jeff Moriarty, David Shoemaker, David Sobel, Wayne Sumner, Steve Wall and an anonymous referee.

5

Health

Developing World

Health Issues

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5.1 Introduction

Developing countries face many health care delivery-related problems. Not all countries face the same problems, but there are significant overlaps nonetheless. It is probably fair to say that infectious disease control, affordable access to existing drugs, the 10/90 gap in health research, migration ('poaching') of health care workers, as well as ethical issues in reproductive health and biomedical research should feature high on the bioethics agenda. Both of us have first-hand knowledge of these problems, living or having lived for many years in developing countries in Southern Africa and South East Asia respectively. Mainstream bioethics has, after decades of neglect, only belatedly begun to tackle these issues. Michael Selgelid suggests a number of reasons for this, chiefly among them the fact that bioethics as an academic discipline was born in the aftermath of cutting-edge scientific discoveries and technologies.² Others have suggested that the types of problems encountered in the developing world are so severe and so obvious that an ethical analysis is next to unnecessary, because the injustices are self-evident and not in need of much analysis.³

It cannot come as much of a surprise that bioethicists based in the developed world remain by and large beholden to these roots. Elliott has suggested that bioethicists' preoccupation with 'hi-tech' issues was a result of them traditionally 'following the money.'⁴ However, at the time of writing, this picture is beginning to change, albeit slowly. The objective importance of issues of concern to developing countries is beginning to get recognized, for instance by the emergence of professional journals such as *Developing World Bioethics* which is published by a mainstream developed-world publishing house. One of the oldest existing

